

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 988

Introduced by Meyer, 17; DeKay, 40; Hardin, 48; Lippincott, 34.

Read first time January 12, 2026

Committee:

1 A BILL FOR AN ACT relating to the Community Development Law; to amend
2 sections 18-2143, 18-2148, 18-2150, and 18-2153, Reissue Revised
3 Statutes of Nebraska, section 18-2117.01, Revised Statutes
4 Cumulative Supplement, 2024, and sections 18-2101, 18-2103, and
5 18-2147, Revised Statutes Supplement, 2025; to define and redefine
6 terms; to change provisions related to redevelopment plans,
7 interpretation of the law, and limitations on the division of ad
8 valorem taxes; to provide for limitations on the declaration of
9 blighted areas and the use of tax-increment financing; to harmonize
10 provisions; and to repeal the original sections.
11 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 18-2101, Revised Statutes Supplement, 2025, is
2 amended to read:

3 18-2101 Sections 18-2101 to 18-2158 and sections 9 to 12 of this act
4 shall be known and may be cited as the Community Development Law.

5 **Sec. 2.** Section 18-2103, Revised Statutes Supplement, 2025, is
6 amended to read:

7 18-2103 For purposes of the Community Development Law, unless the
8 context otherwise requires:

9 (1) Affordable housing means (a) workforce housing, (b) housing
10 targeted for households earning less than one hundred fifty percent of
11 the median income for the county in which such housing is located, or (c)
12 housing under section 42 of the Internal Revenue Code;

13 (2) Area of operation means and includes the area within the
14 corporate limits of the city and such land outside the city as may come
15 within the purview of sections 18-2123 and 18-2123.01;

16 (3) Authority means any community redevelopment authority created
17 pursuant to section 18-2102.01 and any community development agency
18 created pursuant to section 18-2101.01 and does not include a limited
19 community redevelopment authority;

20 (4) Blighted area means an area (a) which, by reason of the presence
21 of a substantial number of deteriorated or deteriorating structures,
22 existence of defective or inadequate street layout, faulty lot layout in
23 relation to size, adequacy, accessibility, or usefulness, insanitary or
24 unsafe conditions, deterioration of site or other improvements, diversity
25 of ownership, tax or special assessment delinquency exceeding the fair
26 value of the land, defective or unusual conditions of title, improper
27 subdivision, obsolete or no platting, or the existence of conditions
28 which endanger life or property by fire and other causes, or any
29 combination of such factors, substantially impairs or arrests the sound
30 growth of the community, retards the provision of housing accommodations,
31 or constitutes an economic or social liability and is detrimental to the

1 public health, safety, morals, or welfare in its present condition and
2 use, ~~and~~ (b) in which there is at least one of the following conditions:
3 (i) Unemployment in the designated area is at least one hundred twenty
4 percent of the state or national average; (ii) the average age of the
5 residential or commercial units in the area is at least forty years;
6 (iii) more than half of the plotted and subdivided property in an area is
7 unimproved land that has been within the city for forty years and has
8 remained unimproved during that time; (iv) the per capita income of the
9 area is lower than the average per capita income of the city or village
10 in which the area is designated; (v) the area has had either stable or
11 decreasing population based on the last two decennial censuses; or (vi)
12 less than twenty percent of the housing in the area is affordable
13 housing, and (c) which contains no less than one uninhabitable structure
14 as determined by an inspector designated by the governing body or at
15 least one recently demolished structure. An inspector may declare a
16 structure permanently uninhabitable once the structure has been found to
17 be (a) unstable and subject to collapse, in whole or in part, (b)
18 allowing elemental intrusion, or (c) containing an unresolved safety
19 hazard. In no event shall a city of the metropolitan, primary, or first
20 class designate more than thirty-five percent of the city as blighted, a
21 city of the second class shall not designate an area larger than fifty
22 percent of the city as blighted, and a village shall not designate an
23 area larger than one hundred percent of the village as blighted. A
24 redevelopment project involving a formerly used defense site as
25 authorized under section 18-2123.01, any area which is located within a
26 good life district established under the Good Life Transformational
27 Projects Act, and any area declared to be an extremely blighted area
28 under section 18-2101.02 shall not count towards the percentage
29 limitations contained in this subdivision;

30 (5) Bonds means any bonds, including refunding bonds, notes, interim
31 certificates, debentures, or other obligations issued pursuant to the

1 Community Development Law except for bonds issued pursuant to section
2 18-2142.04;

3 (6) Business means any private business located in an enhanced
4 employment area;

5 (7) City means any city or incorporated village in the state;

6 (8) Clerk means the clerk of the city or village;

7 (9) Community redevelopment area means a substandard and blighted
8 area which the community redevelopment authority designates as
9 appropriate for a redevelopment project;

10 (10) Effective date of the redevelopment project means the date that
11 a redevelopment project is approved by a majority vote of the governing
12 body;

13 (11) ~~(10)~~ Employee means a person employed at a business as a result
14 of a redevelopment project;

15 (12) ~~(11)~~ Employer-provided health benefit means any item paid for
16 by the employer in total or in part that aids in the cost of health care
17 services, including, but not limited to, health insurance, health savings
18 accounts, and employer reimbursement of health care costs;

19 (13) ~~(12)~~ Enhanced employment area means an area not exceeding six
20 hundred acres (a) within a community redevelopment area which is
21 designated by an authority as eligible for the imposition of an
22 occupation tax or (b) not within a community redevelopment area as may be
23 designated under section 18-2142.04;

24 (14) ~~(13)~~ Equivalent employees means the number of employees
25 computed by (a) dividing the total hours to be paid in a year by (b) the
26 product of forty times the number of weeks in a year;

27 (15) ~~(14)~~ Extremely blighted area means a substandard and blighted
28 area in which: (a) The average rate of unemployment in the area during
29 the period covered by the most recent American Community Survey 5-Year
30 Estimate is at least two hundred percent of the average rate of
31 unemployment in the state during the same period; and (b) the average

1 poverty rate in the area exceeds twenty percent for the total federal
2 census tract or tracts or federal census block group or block groups in
3 the area;

4 (16) ~~(15)~~ Federal government means the United States of America, or
5 any agency or instrumentality, corporate or otherwise, of the United
6 States of America;

7 (17) ~~(16)~~ Governing body or local governing body means the city
8 council, board of trustees, or other legislative body charged with
9 governing the municipality;

10 (18) ~~(17)~~ Limited community redevelopment authority means a
11 community redevelopment authority created pursuant to section 18-2102.01
12 having only one single specific limited pilot project authorized;

13 (19) ~~(18)~~ Mayor means the mayor of the city or chairperson of the
14 board of trustees of the village;

15 (20) ~~(19)~~ New investment means the value of improvements to real
16 estate made in an enhanced employment area by a developer or a business;

17 (21) ~~(20)~~ Number of new employees means the number of equivalent
18 employees that are employed at a business as a result of the
19 redevelopment project during a year that are in excess of the number of
20 equivalent employees during the year immediately prior to the year that a
21 redevelopment plan is adopted;

22 (22) ~~(21)~~ Obligee means any bondholder, agent, or trustee for any
23 bondholder, or lessor demising to any authority, established pursuant to
24 section 18-2102.01, property used in connection with a redevelopment
25 project, or any assignee or assignees of such lessor's interest or any
26 part thereof, and the federal government when it is a party to any
27 contract with such authority;

28 (23) ~~(22)~~ Occupation tax means a tax imposed under section
29 18-2142.02;

30 (24) ~~(23)~~ Person means any individual, firm, partnership, limited
31 liability company, corporation, company, association, joint-stock

1 association, or body politic and includes any trustee, receiver,
2 assignee, or other similar representative thereof;

3 (25) ~~(24)~~ Public body means the state or any municipality, county,
4 township, board, commission, authority, district, or other political
5 subdivision or public body of the state;

6 (26) ~~(25)~~ Real property means all lands, including improvements and
7 fixtures thereon, and property of any nature appurtenant thereto, or used
8 in connection therewith, and every estate, interest and right, legal or
9 equitable, therein, including terms for years and liens by way of
10 judgment, mortgage, or otherwise, and the indebtedness secured by such
11 liens;

12 (27) ~~(26)~~ Redeveloper means any person, partnership, or public or
13 private corporation or agency which enters or proposes to enter into a
14 redevelopment contract;

15 (28) ~~(27)~~ Redevelopment contract means a contract entered into
16 between an authority and a redeveloper for the redevelopment of an area
17 in conformity with a redevelopment plan;

18 (29) ~~(28)~~ Redevelopment plan means a plan, as it exists from time to
19 time for one or more community redevelopment areas, or for a
20 redevelopment project, which (a) conforms to the general plan for the
21 municipality as a whole and (b) is sufficiently complete to indicate such
22 land acquisition, demolition and removal of structures, redevelopment,
23 improvements, and rehabilitation as may be proposed to be carried out in
24 the community redevelopment area, zoning and planning changes, if any,
25 land uses, maximum densities, and building requirements;

26 (30) ~~(29)~~ Redevelopment project means any work or undertaking in one
27 or more community redevelopment areas: (a) To acquire substandard and
28 blighted areas or portions thereof, including lands, structures, or
29 improvements the acquisition of which is necessary or incidental to the
30 proper clearance, development, or redevelopment of such substandard and
31 blighted areas; (b) to clear any such areas by demolition or removal of

1 existing buildings, structures, streets, utilities, or other improvements
2 thereon and to install, construct, or reconstruct streets, utilities,
3 parks, playgrounds, public spaces, public parking facilities, sidewalks
4 or moving sidewalks, convention and civic centers, bus stop shelters,
5 lighting, benches or other similar furniture, trash receptacles,
6 shelters, skywalks and pedestrian and vehicular overpasses and
7 underpasses, enhancements to structures in the redevelopment plan area
8 which exceed minimum building and design standards in the community and
9 prevent the recurrence of substandard and blighted conditions, and any
10 other necessary public improvements essential to the preparation of sites
11 for uses in accordance with a redevelopment plan; (c) to sell, lease, or
12 otherwise make available land in such areas for residential,
13 recreational, commercial, industrial, or other uses, including parking or
14 other facilities functionally related or subordinate to such uses, or for
15 public use or to retain such land for public use, in accordance with a
16 redevelopment plan; and may also include the preparation of the
17 redevelopment plan, the planning, survey, and other work incident to a
18 redevelopment project and the preparation of all plans and arrangements
19 for carrying out a redevelopment project; (d) to dispose of all real and
20 personal property or any interest in such property, or assets, cash, or
21 other funds held or used in connection with residential, recreational,
22 commercial, industrial, or other uses, including parking or other
23 facilities functionally related or subordinate to such uses, or any
24 public use specified in a redevelopment plan or project, except that such
25 disposition shall be at its fair value for uses in accordance with the
26 redevelopment plan; (e) to acquire real property in a community
27 redevelopment area which, under the redevelopment plan, is to be repaired
28 or rehabilitated for dwelling use or related facilities, repair or
29 rehabilitate the structures, and resell the property; (f) to carry out
30 plans for a program of voluntary or compulsory repair, rehabilitation, or
31 demolition of buildings in accordance with the redevelopment plan; and

1 (g) to carry out construction of affordable housing;

2 (31) (30) Redevelopment project valuation means the valuation for
3 assessment of the taxable real property in a redevelopment project last
4 certified for the year prior to the effective date of the redevelopment
5 project provision authorized in section 18-2147;

6 (32) (31) Rural community means any municipality in a county with a
7 population of fewer than one hundred thousand inhabitants as determined
8 by the most recent federal decennial census;

9 (33) (32) Substandard area means an area in which less than twenty
10 percent of the housing is affordable housing or in which there is a
11 predominance of buildings or improvements, whether nonresidential or
12 residential in character, which, by reason of dilapidation,
13 deterioration, age or obsolescence, inadequate provision for ventilation,
14 light, air, sanitation, or open spaces, high density of population and
15 overcrowding, or the existence of conditions which endanger life or
16 property by fire and other causes, or any combination of such factors, is
17 conducive to ill health, transmission of disease, infant mortality,
18 juvenile delinquency, and crime, (which cannot be remedied through
19 construction of prisons), and is detrimental to the public health,
20 safety, morals, or welfare. A substandard area shall not include any real
21 property classified as agricultural or horticultural land as defined in
22 section 77-1343 or any real property containing no permanent structure or
23 recently demolished structure; and

24 (34) (33) Workforce housing means:

25 (a) Housing that meets the needs of today's working families;

26 (b) Housing that is attractive to new residents considering
27 relocation to a rural community;

28 (c) Owner-occupied housing units that cost not more than two hundred
29 seventy-five thousand dollars to construct or rental housing units that
30 cost not more than two hundred thousand dollars per unit to construct.
31 For purposes of this subdivision (c), housing unit costs shall be updated

1 annually by the Department of Economic Development based upon the most
2 recent increase or decrease in the Producer Price Index for all
3 commodities, published by the United States Department of Labor, Bureau
4 of Labor Statistics;

5 (d) Owner-occupied and rental housing units for which the cost to
6 substantially rehabilitate exceeds fifty percent of a unit's assessed
7 value; and

8 (e) Upper-story housing.

9 **Sec. 3.** Section 18-2117.01, Revised Statutes Cumulative Supplement,
10 2024, is amended to read:

11 18-2117.01 (1)(a) On or before December 1 each year, each city which
12 has approved one or more redevelopment plans which are financed in whole
13 or in part through the division of taxes as provided in section 18-2147
14 shall provide a report to the Property Tax Administrator on each such
15 redevelopment plan which includes the following information:

16 (i) A copy of the redevelopment plan and any amendments thereto,
17 including the date upon which the redevelopment plan was approved, the
18 effective date of the redevelopment project for dividing the ad valorem
19 tax as provided to the county assessor pursuant to subsection (6) of
20 section 18-2147, and the location and boundaries of the property in the
21 redevelopment project; and

22 (ii) A short narrative description of the type of development
23 undertaken by the city or village with the financing and the type of
24 business or commercial activity locating within the redevelopment project
25 area as a result of the redevelopment project.

26 (b) If a city has approved one or more redevelopment plans using an
27 expedited review under section 18-2155, the city may file a single report
28 under this subsection for all such redevelopment plans.

29 (2) The report required under subsection (1) of this section must be
30 filed each year, regardless of whether the information in the report has
31 changed, except that a city is not required to refile a copy of the

1 redevelopment plan or an amendment thereto if such copy or amendment has
2 previously been filed.

3 (3) The Property Tax Administrator shall compile a report for each
4 active redevelopment project, based upon information provided by the
5 cities pursuant to subsection (1) of this section and information
6 reported by the county assessor or county clerk on the certificate of
7 taxes levied pursuant to section 77-1613.01. Each report shall be
8 electronically transmitted to the Clerk of the Legislature not later than
9 March 1 each year. The report may include any recommendations of the
10 Property Tax Administrator as to what other information should be
11 included in the report from the cities so as to facilitate analysis of
12 the uses, purposes, and effectiveness of tax-increment financing and the
13 process for its implementation or to streamline the reporting process
14 provided for in this section to eliminate unnecessary paperwork.

15 **Sec. 4.** Section 18-2143, Reissue Revised Statutes of Nebraska, is
16 amended to read:

17 18-2143 The powers conferred by the Community Development Law shall
18 be in addition and supplemental to the powers conferred by any other law
19 and shall be independent of and in addition to any other provision of the
20 laws of the State of Nebraska with reference to the matters covered in
21 the Community Development Law and shall be considered as a complete and
22 independent act and not as amendatory of or limited by any other
23 provision of the laws of the State of Nebraska. Notwithstanding any other
24 evidence of legislative intent, it is hereby declared to be the
25 controlling legislative intent that if any provision of the Community
26 Development Law, or the application thereof to any person or
27 circumstances is held unconstitutional or invalid, it shall not affect
28 the other provisions of the Community Development Law or the application
29 of such provision to other persons or circumstances. All ~~The Community~~
30 ~~Development Law and all grants of power, authority, rights, or discretion~~
31 ~~made to a city and to an authority created under the Community~~

1 ~~Development Law shall be liberally construed, and all~~ incidental powers
2 necessary to carry into effect the Community Development Law are hereby
3 expressly granted to and conferred upon a city or an authority created
4 pursuant thereto.

5 **Sec. 5.** Section 18-2147, Revised Statutes Supplement, 2025, is
6 amended to read:

7 18-2147 (1) Any redevelopment plan as originally approved or as
8 later modified pursuant to section 18-2117 may contain a provision that
9 any ad valorem tax levied upon real property, or any portion thereof, in
10 a redevelopment project for the benefit of any public body shall be
11 divided, for the applicable period described in subsection (4) of this
12 section, as follows:

13 (a) That portion of the ad valorem tax which is produced by the levy
14 at the rate fixed each year by or for each such public body upon the
15 redevelopment project valuation shall be paid into the funds of each such
16 public body in the same proportion as are all other taxes collected by or
17 for the body. When there is not a redevelopment project valuation on a
18 parcel or parcels, the county assessor shall determine the redevelopment
19 project valuation based upon the fair market valuation of the parcel or
20 parcels as of January 1 of the year prior to the year that the ad valorem
21 taxes are to be divided. The county assessor shall provide written notice
22 of the redevelopment project valuation to the authority as defined in
23 section 18-2103 and the owner. The authority or owner may protest the
24 valuation to the county board of equalization within thirty days after
25 the date of the valuation notice. All provisions of section 77-1502
26 except dates for filing of a protest, the period for hearing protests,
27 and the date for mailing notice of the county board of equalization's
28 decision are applicable to any protest filed pursuant to this section.
29 The county board of equalization shall decide any protest filed pursuant
30 to this section within thirty days after the filing of the protest. The
31 county clerk shall mail a copy of the decision made by the county board

1 of equalization on protests pursuant to this section to the authority or
2 owner within seven days after the board's decision. Any decision of the
3 county board of equalization may be appealed to the Tax Equalization and
4 Review Commission, in accordance with section 77-5013, within thirty days
5 after the date of the decision;

6 (b) That portion of the ad valorem tax on real property, as provided
7 in the redevelopment contract, bond resolution, or redevelopment plan, as
8 applicable, in the redevelopment project in excess of such amount, if
9 any, shall be allocated to and, when collected, paid into a special fund
10 of the authority to be used solely to pay the principal of, the interest
11 on, and any premiums due in connection with the bonds of, loans, or
12 notes, or advances of money to, or indebtedness incurred by, whether
13 funded, refunded, assumed, or otherwise, such authority for financing or
14 refinancing, in whole or in part, the specific redevelopment project for
15 which the tax was collected and pledged. Funds and excess funds generated
16 from a redevelopment project and funds repayable to a government entity
17 shall not be shared with other redevelopment projects nor shall any such
18 excess funds be pooled into any other fund to be allocated to other
19 development or infrastructure projects and shall not be retained to pay
20 for future expenses not covered or specified in the original
21 redemption plan. When such bonds, loans, notes, ~~advances of money,~~ or
22 indebtedness, including interest and premiums due, have been paid, the
23 authority shall so notify the county assessor and county treasurer and
24 all ad valorem taxes upon taxable real property in such a redevelopment
25 project shall be paid into the funds of the respective public bodies. An
26 authority may use a single fund for purposes of this subdivision for all
27 redevelopment projects or may use a separate fund for each redevelopment
28 project; and

29 (c) Any interest and penalties due for delinquent taxes shall be
30 paid into the funds of each public body in the same proportion as are all
31 other taxes collected by or for the public body.

1 (2) To the extent that a redevelopment plan authorizes the division
2 of ad valorem taxes levied upon only a portion of the real property
3 included in such redevelopment plan, any improvements funded by such
4 division of taxes shall be related to the redevelopment plan that
5 authorized such division of taxes.

6 (3)(a) For any redevelopment plan located in a city of the
7 metropolitan class that includes a division of taxes, as provided in this
8 section, that produces, in whole or in part, funds to be used directly or
9 indirectly for (i) new construction, rehabilitation, or acquisition of
10 housing for households with annual incomes below the area median income
11 for households and located within six hundred yards of a public passenger
12 streetcar or (ii) new construction, rehabilitation, or acquisition of
13 single-family housing or condominium housing used as primary residences
14 for individuals with annual incomes below the area median income for
15 individuals, such housing shall be deemed related to the redevelopment
16 plan that authorized such division of taxes regardless of whether such
17 housing is or will be located on real property within such redevelopment
18 plan, as long as such housing supports activities occurring on or
19 identified in such redevelopment plan.

20 (b) During each fiscal year in which the funds described in
21 subdivision (a) of this subsection are available, the authority and city
22 shall make best efforts to allocate not less than thirty percent of such
23 funds to single-family housing deemed related to the redevelopment plan
24 described under such subdivision.

25 (c) In selecting projects to receive funding, the authority and city
26 shall develop a qualified allocation plan and give first priority to
27 financially viable projects that serve the lowest income occupants for
28 the longest period of time.

29 (4)(a) For any redevelopment plan for which more than fifty percent
30 of the property in the redevelopment project area has been declared an
31 extremely blighted area in accordance with section 18-2101.02, ad valorem

1 taxes shall be divided for a period not to exceed twenty years after the
2 effective date of the redevelopment project ~~as identified in the project~~
3 ~~redevelopment contract or in the resolution of the authority authorizing~~
4 ~~the issuance of bonds pursuant to section 18-2124.~~

5 (b) For all other redevelopment plans, ad valorem taxes shall be
6 divided for a period not to exceed fifteen years after the effective date
7 of the redevelopment project ~~as identified in the project redevelopment~~
8 ~~contract, in the resolution of the authority authorizing the issuance of~~
9 ~~bonds pursuant to section 18-2124, or in the redevelopment plan,~~
10 ~~whichever is applicable.~~

11 (5) The effective date of the redevelopment project ~~under a~~
12 ~~provision dividing ad valorem taxes as provided in subsection (4) of this~~
13 section shall not occur until such time as the real property in the
14 redevelopment project is within the corporate boundaries of the city.
15 This subsection shall not apply to a redevelopment project involving a
16 formerly used defense site as authorized in section 18-2123.01.

17 (6) All notices of the redevelopment project ~~provision~~ for dividing
18 ad valorem taxes shall be sent by the authority to the county assessor on
19 forms prescribed by the Property Tax Administrator. The notice shall be
20 sent to the county assessor on or before July 1 of the year of the
21 effective date of the redevelopment project ~~provision~~. Failure to satisfy
22 the notice requirement of this section shall result in the taxes, for all
23 taxable years affected by the failure to give notice of the effective
24 date of the redevelopment project ~~provision~~, remaining undivided and
25 being paid into the funds for each public body receiving property taxes
26 generated by the property in the redevelopment project. However, the
27 redevelopment project valuation for the remaining division of ad valorem
28 taxes in accordance with subdivisions (1)(a) and (b) of this section
29 shall be the last certified valuation for the taxable year prior to the
30 effective date of the redevelopment project ~~provision to divide the taxes~~
31 for the remaining portion of the twenty-year or fifteen-year period

1 pursuant to subsection (4) of this section.

2 (7) Once a redevelopment project has been paid off, the treasurer of
3 the governing body shall redirect any excess revenue related to such
4 redevelopment project to the taxing entity.

5 **Sec. 6.** Section 18-2148, Reissue Revised Statutes of Nebraska, is
6 amended to read:

7 18-2148 Commencing on the effective date of the redevelopment
8 project ~~provision outlined in section 18-2147~~, the county assessor, or
9 county clerk where he or she is ex officio county assessor, of the county
10 in which the redevelopment project is located, shall transmit to an
11 authority and the county treasurer, upon request of the authority, the
12 redevelopment project valuation and shall annually certify, on or before
13 August 20, to the authority and the county treasurer the current
14 valuation for assessment of taxable real property in the redevelopment
15 project. The county assessor shall undertake, upon request of an
16 authority, an investigation, examination, and inspection of the taxable
17 real property in the redevelopment project and shall reaffirm or revalue
18 the current value for assessment of such property in accordance with the
19 findings of such investigation, examination, and inspection.

20 **Sec. 7.** Section 18-2150, Reissue Revised Statutes of Nebraska, is
21 amended to read:

22 18-2150 In the proceedings for the issuance of bonds, the making of
23 ~~loans or advances of money,~~ or the incurring of any indebtedness, whether
24 funded, refunded, assumed, or otherwise, by an authority to finance or
25 refinance, in whole or in part, a redevelopment project, the portion of
26 taxes mentioned in subdivision (1)(b) of section 18-2147 shall be pledged
27 for the payment of the principal of, premium, if any, and interest on
28 such bonds, loans, notes, ~~advances,~~ or indebtedness.

29 **Sec. 8.** Section 18-2153, Reissue Revised Statutes of Nebraska, is
30 amended to read:

31 18-2153 The powers conferred by sections 18-2147 to 18-2153 shall be

1 in addition and supplemental to the powers conferred by any other law and
2 shall be independent of and in addition to any other provision of the
3 laws of the State of Nebraska with reference to the matters covered in
4 such sections. ~~All The provisions of such sections and all grants of~~
5 ~~power, authority, rights, or discretion to a city or village and to an~~
6 ~~authority created under the Community Development Law shall be liberally~~
7 ~~construed, and all incidental powers necessary to carry into effect such~~
8 sections are hereby expressly granted to and conferred upon a city or
9 village or an authority created pursuant to the Community Development
10 Law.

11 **Sec. 9.** For purposes of a redevelopment plan, an area, other than a
12 site with a Highway Historical Marker as determined pursuant to section
13 82-120 or a property of historical value or significance as determined by
14 the governing body, which contains a structure shall not be declared
15 substandard and blighted or extremely blighted unless the structure has
16 been declared permanently uninhabitable by an inspector designated by the
17 governing body. Such inspector may declare a structure permanently
18 uninhabitable once the structure has been found to be:

19 (1) Unstable and subject to collapse, in whole or in part;

20 (2) Allowing elemental intrusion; or

21 (3) Containing an unresolved safety hazard.

22 **Sec. 10.** The division of taxes as provided in section 18-2147 shall
23 not be used for a public transportation project unless first approved by
24 a majority vote of the people in the voting precincts where such public
25 transportation project is located.

26 **Sec. 11.** To prevent abuses of the Community Development Law, no
27 part of a redevelopment project area may be declared substandard and
28 blighted or extremely blighted twice during the twenty-year period after
29 the effective date of the redevelopment project for such area unless such
30 declaration has been approved by the Governor due to emergency.

31 **Sec. 12.** For purposes of a redevelopment project or redevelopment

1 plan, the terms debt and indebtedness shall refer solely to the principal
2 of a loan or mortgage, the interest on a loan or mortgage, any premiums
3 due in connection with the bonds, loans, mortgages, or notes or any other
4 financial liabilities incurred by, whether funded, refunded, assumed, or
5 otherwise, such authority for financing or refinancing, in whole or in
6 part, the specific redevelopment project or redevelopment plan for which
7 taxes were collected and pledged.

8 **Sec. 13.** Original sections 18-2143, 18-2148, 18-2150, and 18-2153,
9 Reissue Revised Statutes of Nebraska, section 18-2117.01, Revised
10 Statutes Cumulative Supplement, 2024, and sections 18-2101, 18-2103, and
11 18-2147, Revised Statutes Supplement, 2025, are repealed.